

this suit against her in her official capacity. We find that the suit is proper under the *Ex Parte Young*, 209 U.S. 123, 28 S.Ct. 441, 52 L.Ed. 714 (1908), exception to Eleventh Amendment immunity and reject Swanson's argument.

█ The Eleventh Amendment establishes a general prohibition of suits in federal court by a citizen of a state against his state or an officer or agency of that state. *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 100, 104 S.Ct. 900, 79 L.Ed.2d 67 (1984). However, there are exceptions to this rule. Relevant here, a suit against a state official may go forward in the limited circumstances identified by the Supreme Court in *Ex Parte Young*. Under the *Ex Parte Young* doctrine, a private party can sue a state officer in his official capacity to enjoin a prospective action that would violate federal law. In determining whether this exception applies, a court conducts "a straightforward inquiry into whether [the] complaint alleges an ongoing violation of federal law and seeks relief properly characterized as prospective." *Verizon Maryland, Inc. v. Pub. Serv. Comm'n of Maryland*, 535 U.S. 635, 645, 122 S.Ct. 1753, 152 L.Ed.2d 871 (2002) (alteration in original) (internal quotation omitted). Here, there is no dispute that the relief plaintiffs seek is prospective. The only question is whether they have alleged that defendant Swanson is, herself, engaged in an ongoing violation of federal law.

█ Plaintiffs argue that the attorney general is engaged in an ongoing violation of federal law by virtue of the office's participation in the enforcement mechanism of section 211B.06. Swanson responds that her office has no special role in the enforcement of section 211B.06 and that a state attorney general is not automatically a proper defendant when a lawsuit challenges the constitutionality of a

state statute. Swanson is correct that, under *Ex Parte Young*, a state attorney general cannot be sued merely as a representative of the state itself. 209 U.S. at 157, 28 S.Ct. 441. Rather, to be amenable for suit challenging a particular statute the attorney general must have "some connection with the enforcement of the act." *Reprod. Health Servs. v. Nixon*, 428 F.3d 1139, 1145-46 (8th Cir.2005). Here, plaintiffs have demonstrated a sufficient connection between the attorney general and the enforcement of section 211B.06 to satisfy this standard.

Plaintiffs allege a three-fold connection between the Minnesota attorney general and the enforcement of section 211B.06. First, the attorney general may, upon request of the county attorney assigned to a case, become involved in a criminal prosecution of section 211B.06. Minn.Stat. § 8.01. Second, the attorney general is responsible for defending the decisions of the OAH—including decisions pursuant to section 211B.06—if they are challenged in civil court. *See* Minn.Stat. § 8.06 (the attorney general "shall act as the attorney for all state officers and all boards or commissions created by law in all matters pertaining to their official duties."). Third, the attorney general appears to have the ability to file a civil complaint under section 211B.06, as Minnesota law gives the attorney general broad discretion to commence civil actions, *see* Minn.Stat. § 8.01, and section 211B.06 allows any person, entity, or agency to file a civil complaint.

Under our precedent, this connection is strong enough to bring this suit under the *Ex Parte Young* exception to Eleventh Amendment immunity. While we do require "some connection" between the attorney general and the challenged statute, that connection does not need to be primary authority to enforce the challenged law. *See Missouri Pro. & Advocacy*